

Jaswinder Singh vs State Of Punjab & Another on 27 July, 2010

Author: Sabina

Bench: Sabina

Crl. Misc. No. M- 3898 of 2010 (O&M)

1

IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

Crl. Misc. No. M- 3898 of 2010 (O&M)

Date of Decision: July 27, 2010

Jaswinder Singh

.....Petitioner

Versus

State of Punjab & another

.....Respondents

CORAM : HON'BLE MRS. JUSTICE SABINA

Present: Mr. Vikas Bahl, Advocate,
for the petitioner.

Mr. Amandeep Singh Rai, AAG, Punjab.

Respondent No.2 in person with
Ms. Shashi Guman, Advocate,
for respondent No.2.

SABINA, J.

Petitioner has filed this petition under Section 482 of the Code of Criminal Procedure for quashing/setting aside the FIR No.25, dated 2.9.2009, under Sections 323,406,498-A & 506 of the Indian Penal Code (in short 'IPC'), Police Station Pojewal, District- S.B.S. Nagar and consequent proceedings arising therefrom on the basis of compromise.

Learned counsel for the petitioner has submitted that now during the pendency of the petition parties have arrived at a compromise. Petitioner and respondent No.2 have filed a petition seeking divorce on the basis of mutual consent under Section 13-B of the Hindu Marriage Act, 1955. Petitioner has paid Rs.7 lacs to respondent No.2 towards full and final settlement i.e. towards past, present and future maintenance. Petitioner has handed over their daughter Manveer Kaur to respondent No.2.

Respondent No.2, who is present in person along with her counsel, has taken over the custody of the minor daughter Manveer Kaur and has tendered her affidavit, wherein she has stated that she may be given the custody of her daughter and she will look after the child. She has also stated in the affidavit that she (respondent No.2) has received Rs. 7 lac as full and final maintenance and has no objection if the FIR is ordered to be quashed.

As per the Full Bench judgment of this Court in Kulwinder Singh and others vs. State of Punjab, 2007 (3) RCR (Criminal) 1052, High Court has power under Section 482 Cr.P.C. to allow the compounding of non-compoundable offence and quash the prosecution where the High Court felt that the same was required to prevent the abuse of the process of any Court or to otherwise secure the ends of justice. This power of quashing is not confined to matrimonial disputes alone.

Hon'ble the Apex Court in the case of Nikhil Merchant vs. Central Bureau of Investigation and another JT 2008 (9) SC 192 in para Nos.26 and 24 has held as under :-

"26. In the instant case, the disputes between the Company and the Bank have been set at rest on the basis of the compromise arrived at by them whereunder the dues of the Bank have been cleared and the Bank does not appear to have any further claim against the Company. What, however, remains is the fact that certain documents were alleged to have been created by the appellant herein in order to avail of credit facilities beyond the limit to which the Company was entitled. The dispute involved herein has overtones of a civil dispute with certain criminal facts. The question which is required to be answered in this case is whether the power which independently lies with this Court to quash the criminal proceedings pursuant to the compromise arrived at, should at all be exercised?

24. On an overall view of the facts as indicated hereinabove and keeping in mind the decision of the Court in B.S. Joshi's case (supra) and the compromise arrived at between the Company and the Bank as also clause 11 of the consent terms filed in the suit filled by the Bank, we are satisfied that this is a fit case where technicality should not be allowed to stand in the way in the quashing of the criminal proceedings, since, in our view, the continuance of the same after the compromise arrived at between the parties would be a futile exercise."

Since the parties have arrived at a compromise and have decided to live in peace, no useful purpose would be served in allowing these criminal proceedings to continue.

Accordingly, the present petition is allowed. The FIR No.25, dated 2.9.2009, under Sections 323,406,498-A & 506 of IPC, Police Station Pojewal, District- S.B.S. Nagar and consequent proceedings, arising therefrom, are quashed.

(SABINA)

July 27 , 2010
Anand

JUDGE